

Cal.App.5th 158, 171.)

Defendant has met its burden by proving that the electronic signature was the act of Plaintiff by establishing evidence that the Arbitration Agreement was valid. Defendant did this by authenticating the Arbitration Agreement through its Declaration of Zabilhullah "Mo" Yousofzai In Support Of Defendant's Motion To Compel Binding Arbitration Pursuant To Contract And To Stay This Case. Mr. Yousofzai declared that he had him electronically sign the contract on a tablet. (Yousofzai Decl. ¶ 7.) Mr. Yousofzai goes on to state that the electronic signed copy of the contract was included in the deal jacket. (Id.)

The Court notes that Plaintiff's position about the signing of the contract has been inconsistent. In Plaintiff's declaration attached to his moving papers, he emphatically states that at no time during the transaction did he electronically sign the Retail Installment Sales Contract using a computer, tablet, touchscreen device, kiosk, cellular telephone, or any other electronic signature platform. (Vigil Declaration at p. 2: 15-17.) On the next page of his declaration Plaintiff states that he has no recollection of executing a second contract or electronically signing documents after signing the paper contract on which he made amendments to. (Vigil Declaration at p. 3: 14-18.)

Considering the totality of the circumstances, the Yousofzai Declaration satisfies authentication of the Arbitration Agreement under *Ruiz* and Civil Code section 1633.9.

Conclusion

Plaintiff has failed to show new or different facts, circumstances, or law that would entitle him to a different decision than the one made by the court granting the motion to compel arbitration. Accordingly, **Plaintiff's Motion for Reconsideration is denied**. The matter remains stayed in view of the referral to arbitration.

The Court sets a Case Management Conference ("CMC") at **8:30 am on December 3, 2026, in Dept. 32**. Parties to file a CMC Statement on the status of the arbitration at least 10 days prior to the CMC.

8. 9:00 AM CASE NUMBER: C25-00064
CASE NAME: MILDRED POWELL VS. SUNSET VIEW CEMETERY ASSOCIATION
FILED BY DEFENDANTS
FILED BY:

TENTATIVE RULING:

This is the first time the case has been set to be called in front of Dept. 32. The matter was previously assigned to Dept. 18 and transferred to Dept. 32 effective January 5, 2026. When the case was called on January 14, 2026 for a Case Management Conference, visiting Judge Charles Treat heard the matter and gave notice that the matter was assigned to Judge Hiramoto D32 for all purposes effective January 5, 2026.

The Court discloses that she and other family members have purchased spaces at the Defendant Sunset View Cemetery Association. Several family members have remains there. She does not recognize any of the names of people mentioned in the pleadings, and to the best of her recollection she has never had any personal interactions with any of the persons mentioned in the pleadings. Her personal dealings had been with only one employee of Defendant and she is informed and believes that that person has since retired. Judge Hiramoto has determined she is not disqualified to hear this matter.

The court on its own motion will **continue the hearing to Friday September 11, 2026 at 9:00 a.m..** The tentative ruling will be available at 1:30 pm on the prior court day, per the usual rules.

9. 9:00 AM CASE NUMBER: C25-01064
CASE NAME: WILTON SHORT VS. FRANKLIN CREDIT MANAGEMENT CORP.
TO CONSOLIDATE
FILED BY:

TENTATIVE RULING:

Plaintiff filed a motion to consolidate this case with PS25-0558, *Bosco Credit LLC v. Tina Short and Wilton Short* on March 30, 2026. That case was an action for unlawful detainer based on the same residential property at issue in the instant case.

On July 30, 2026, Ze Wang, counsel of record for Bosco Credit LLC in the PC25-0558 docket filed a declaration stating that on July 24, 2026 judgment was entered in that case in favor of Bosco Credit and against Defendants Wilton Short and Tina Short. The court on its own motion takes judicial notice of the judgment in docket PS25-0558.

Accordingly, the Plaintiff's motion to consolidate is **denied** as moot.

10. 9:00 AM CASE NUMBER: C25-02254
CASE NAME: REID GREENLAW VS. TERESA TRUONG
TRIAL PREFERENCE / CONT'D FROM 6/26/26 PER TR
FILED BY: GREENLAW, REID

TENTATIVE RULING:

See Line 17.